



PROPOSAL #200922-PRP-ACME

ACME CLIENT PROJECT

This document is a proposed solution to the needs of our client. It details the recommended services and deliverables necessary to satisfy the client's objectives for this engagement. This document will act as a formal agreement between the client and our agency.

PROPOSAL: 200922-PRP-ACME

CLIENT NAME: Acme Client

ATTENTION: John Doe

DATE ISSUED: August 14, 2020

SUBMITTED BY: Jane Smith

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PROJECT SUMMARY

Lorem ipsum dolor sit amet, consectetur adipiscing elit. Praesent facilisis augue eget velit commodo, a mattis risus molestie. Mauris ultricies erat non mauris imperdiet tincidunt. Orci varius natoque penatibus et magnis dis parturient montes, nascetur ridiculus mus. Interdum et malesuada fames ac ante ipsum primis in faucibus. Sed varius nibh neque, vel auctor tellus mollis non. Curabitur ligula dolor, dictum vitae vulputate id, cursus at erat. Vivamus sed nibh hendrerit, hendrerit velit sed, iaculis lorem. Pellentesque finibus ipsum ut nulla luctus, at fermentum ipsum eleifend. Fusce non fringilla nunc. Pellentesque eget mi sit amet elit porta molestie.

OBJECTIVES

- Nullam nec ornare dui, nec bibendum purus.
- Mauris mollis felis ultricies.
- Urabitur varius sollicitudin auctor.
- Sed tincidunt vitae lectus vitae accumsan.

DELIVERABLES

Donec condimentum metus leo, suscipit fermentum ligula sagittis et. Sed tincidunt vitae lectus vitae accumsan. Cras et fringilla magna. Vestibulum interdum augue non orci pharetra egestas. Integer ex orci, luctus eu libero quis, condimentum sollicitudin diam. Fusce a tellus non nulla varius elementum quis quis elit.

- **DELIVERABLE DETAIL:** Fusce fringilla ultrices urna.
- **DELIVERABLE DETAIL:** Etiam scelerisque scelerisque consequat.
- **DELIVERABLE DETAIL:** Sed ac ullamcorper est.
- **DELIVERABLE DETAIL:** Etiam mollis est euismod, fermentum.

Any client requested deliverables that exceed those detailed in this document may necessitate a change order and increase in budget.

ROUNDS & REVISIONS

ROUND 1 DELIVERY: Duis ornare leo feugiat sem facilisis, ut posuere sapien pulvinar. Curabitur varius sollicitudin auctor. Nullam et cursus erat.

ROUND 1 FEEDBACK: Quisque eu nisi at ligula consectetur mollis. Mauris commodo dolor at diam ullamcorper, ac condimentum mi gravida.

ROUND 2 DELIVERY: Curabitur ligula dolor, dictum vitae vulputate id, cursus at erat. Vivamus sed nibh hendrerit, hendrerit, iaculis lorem.

ROUND 2 FEEDBACK: Sed tincidunt vitae lectus vitae accumsan.

ROUND 3 DELIVERY: Donec condimentum metus leo, suscipit fermentum ligula sagittis et. Sed varius nibh neque, vel auctor tellus mollis non.

ROUND 3 APPROVAL: Mauris ultricies erat non mauris imperdiet tincidunt. Orci varius natoque penatibus et magnis.

Any client requests that exceed the rounds and revisions detailed above may necessitate a change order and increase in budget.

ESTIMATED PROJECT DURATION

Project timelines vary depending on client feedback turnaround times. The estimated timelines provided in this document are based upon an assumption that the client will provide feedback and approvals within one day of agency delivery milestones.

ESTIMATED PROJECT COMPLETION DATE

OCTOBER 30, 2020

PHASE	TIMELINE
Service Item #1	00 WEEKS
Service Item #2	00 WEEKS
Service Item #3	00 WEEKS
TOTAL ESTIMATED PROJECT DURATION	00 WEEKS

If the project is not completed within 30 days of the Estimated Project Completion Date due to client delays in providing feedback, assets, approvals, content, direction, and so forth, we reserve the right to discuss and submit a change order to accommodate unforeseen expenses due to the unplanned extension of the project.

ESTIMATED PROJECT BUDGET

The details and costs associated with this proposal are valid for 60 days from the document date. This represents a “package price.” If elements are added to or removed from the scope of the project, the pricing for other elements may be affected. Based on the scope detailed in this document, this project budget reflects a final price commitment from our agency.

PHASE	BUDGET
Service Item #1	\$0,000
Service Item #2	\$0,000
Service Item #3	\$0,000
TOTAL PROJECT BUDGET	\$0,000

INVOICING SCHEDULE

- **INVOICE #1:** 50% of the project will be invoiced at the time of proposal approval.
- **INVOICE #2:** 25% of the project will be invoiced after completion of _____.
- **INVOICE #3:** 25% of the project will be invoiced at the time of project completion.

The payment terms and invoice schedule is structured to benefit both the client and agency with the objective of keeping the amount paid by the client in balance with the amount of work completed by the agency. The proposed payment terms and invoicing schedule is negotiable if it does not fit within the client’s Accounts Payable standards. **All invoices will be “Due Upon Receipt.”**

PROPOSAL ACCEPTANCE

PROPOSAL	200814-PRP-ACME
PROJECT	Website Design & Development
BUDGET	\$0,000
CLIENT	Acme Client
VENDOR	Agency Name
DATE ISSUED	August 14, 2020
VALID	60 days from date issued

The Products and Services provided pursuant to this Statement of Work (SOW) shall be governed by the terms and conditions of this agreement between the Vendor and its employees, contractors, and subsidiaries (collectively referred to as “Vendor”), and Client and its subsidiaries, parents, and affiliated entities (collectively referred to as “Client”). Work will be scheduled for commencement upon execution of this SOW. Milestones, deliverables, and timeframes will be mutually agreed upon by the Vendor and Client and communicated utilizing Vendor’s Project Management System. **To accept the terms of this agreement, please deliver or email a signed copy of this page to your primary contact at our agency.**

“CLIENT”

SIGNATURE

PRINTED NAME

TITLE

DATE

“VENDOR”

SIGNATURE

PRINTED NAME

TITLE

DATE

TERMS & CONDITIONS

PRICE AND PAYMENT TERMS: Client agrees to pay Vendor the amount(s) set for in the statement of work. Reimbursable items (e.g. stock imagery, website plugins, etc) will be pre-approved by Client and will be due upon receipt of invoice. Vendor is entitled to all costs and attorney fees incurred in collecting payment under this Agreement.

MUTUAL INDEMNIFICATION: The Parties shall defend, indemnify, and hold the other Party, its subsidiaries or affiliates, and it's or their shareholders, directors, officers, employees or agents (collectively, the "Indemnified Parties") harmless for any claim made or suit or proceeding brought against a Party (including, but not limited to, claims that the one of the Parties infringed intellectual property rights of another), including payment of any and all losses, judgments, awards, and costs (including reasonable legal fees and expenses), arising out of or related to any claim based upon the other Party's wrongful acts or omissions in connection with these terms and conditions and statement of work.

CHANGES: The Client shall be responsible for making additional payments for changes requested by the Client to the original assignment and agreed to in writing by Client and Vendor. However, no additional payment shall be made for changes required to conform to the original assignment description. All changes to scope and price must be agreed upon in writing between the Client and Vendor prior to execution of changes and additional costs being charged to the Client.

CANCELLATION: Either party may terminate this assignment by providing not less than five (5) days written notice to the other party. In the event of cancellation of this assignment, ownership of all copyrights and the original artwork shall be transferred to Client for any work completed up to the date of cancellation. Client shall pay for all work and expenses based on the contract price and expenses already incurred up to the date of cancellation.

EXPENSES: The Client shall reimburse the Vendor for all reasonable expenses arising from this assignment, including the payment of any sales taxes or other government fees due to this assignment. Expenses greater than \$250 must be approved by Client in writing, including client-requested travel.

SEVERABILITY: The terms and provisions of this Agreement are severable, and should any term or provision hereof be declared or determined by any court or other governmental body or organization to be void, voidable or unenforceable under any applicable law, such void, voidable or unenforceable term or provision shall not affect or invalidate any other term or provision of this Agreement, which shall continue to govern the relative rights and duties of the parties as though the void, voidable or unenforceable term or provision were not a part of this Agreement. In addition, it is the intention and agreement of the parties that all terms and conditions hereof be enforced to the fullest extent permitted by the law.

OWNERSHIP: To the extent that Vendor has received payment of compensation as provided in this Agreement and the applicable statement of work, all selected final materials, artwork and/or digital deliverables produced by Vendor, its employees, agents or assistants specifically for Client will be owned by Client. All work performed for Client by Vendor shall be considered "work for hire."

PORTFOLIO RIGHTS: Vendor retains the nonexclusive, perpetual and worldwide right to display, reproduce and distribute the designs in Vendor's portfolio and website, and third-party trade publications, awards or exhibits, solely for the purpose of promoting or exemplifying Vendor's work, and the right to be credited with copyright ownership and authorship of the designs in connection with such use.

CONFIDENTIAL INFORMATION: All information relating to Client that is known to be confidential or proprietary, or which is clearly marked as such, shall be held in confidence by Vendor.

WARRANTY OF ORIGINALITY: The Vendor warrants and represents that, to the best of his/her knowledge, the work assigned hereunder is original and has not been previously published, or that consent to use has been obtained on an unlimited basis; that all work or portions thereof obtained through the undersigned from third parties is original or, if previously published, that consent to use has been obtained on an unlimited basis; the Vendor has full authority to make this agreement; and that the work prepared by the Vendor does not contain any scandalous, libelous, or unlawful matter. This warranty does not extend to any uses other than as stated in this document ("Intended Use"). This warranty does not extend to any changes that the Client or others may make to the Vendor's product that may infringe on the rights of others. Client expressly agrees that it will hold the Vendor harmless for all liability caused by the Client's use of the Vendor's product beyond either the Intended Use or due to changes to Vendor's product, to the extent such use infringes on the rights of others. Vendor expressly agrees that it will hold the Client, its officers and employees, harmless from any of Vendor's products or services that infringes upon the rights of others.

LIMITATION OF LIABILITY: Client agrees that it shall not hold the Vendor or his/her agents or employees liable for any incidental or consequential



PROPOSAL THANK YOU

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